

Haven Mortgages Limited
10 Molesworth Street
Dublin 2
D02 R126
Ireland

telephone
post loan offer
cheque issue
0818 150 150

facsimile
01 850 6999

website
www.havenmortgages.ie



Mr

Property Address:
Loan Amount: €130,500.00
Account Number: 61505449

Dear Mr ,

Thank you for progressing your mortgage application in conjunction with your chosen Mortgage Intermediary with Haven Mortgages Limited ("Haven"). You will find the details of your loan offer in the documents we've enclosed.

What documents are enclosed?

- The European Standardised Information Sheet (ESIS)
- Loan Offer Letter
- Suitability Statement (please note your mortgage intermediary will also issue you with a statement of suitability in relation to your mortgage application).
- Copy of Haven Terms of Business
- The Haven Home Loan Approval Pack which contains Haven Home Loan conditions
- A copy of the valuation report on the property

Please read the documents carefully and make sure you are happy with them.

What's next?

We have sent a copy of your loan offer and valuation report to your solicitor, Bruen Glynn & Co, Dublin Road, Tuam, Co. Galway., DX 116002 Tuam. Please contact your solicitor and arrange to meet him/her for advice in relation to the enclosed documents and to progress matters.

Should you have any queries in relation to progressing your mortgage application or the documentation enclosed please refer to your chosen mortgage intermediary and solicitor.

Yours sincerely,

Kieran Tansey
Managing Director

EUROPEAN STANDARDISED INFORMATION SHEET (ESIS)

This document was produced for you, Mr

This document was produced on the basis of the information that you have provided so far and on the current financial market conditions.

The information below remains valid until 19/12/2023, apart from the interest rate and other costs. After that date, it may change in line with market conditions.

This document does not constitute an obligation for Haven Mortgages Limited to grant you a loan.

1. Lender

Haven Mortgages Limited

Telephone: 0818 565 500

Address: 10 Molesworth Street, Dublin 2, D02 R126, Ireland

Website: www.havenmortgages.ie

We are not recommending a particular mortgage for you. However based on your answers to some questions, we are giving you information about this mortgage so that you can make your own choice.

2. Credit Intermediary

Where a credit intermediary is involved, they will provide the information relevant to this section.

3. Main features of the loan

Amount and currency of the loan to be granted: €130,500.00

Duration of the Loan: 30 year(s)

Type of loan and type of applicable interest rate: Home Loan Repayment

This is a capital and interest repayment loan.

The interest rate is fixed for 05 year(s) and, at the end of that period, will default to the standard variable interest rate offered by us at that time unless you choose an alternative interest rate (if on offer by us to you at that time).

Total amount to be reimbursed (inclusive of the fees/costs to be paid on a once off basis set out in section 4 below): €216,342.20

You will pay back €1.66 for every 1 euro borrowed. This calculation is exclusive of the fees/costs to be paid on a once off basis set out in section 4 below.

This amount is illustrative and may vary, for example, a variation in the interest rate will lead to a change in the amount to be repaid.

Value of the property assumed to prepare this information sheet: €145,000

Minimum value of the property required to borrow the illustrated amount €145,000. In certain circumstances it may be possible to borrow the illustrated amount, even if the value of the property falls below this amount. If you would like further information about this, please contact your mortgage intermediary.

This loan will be secured by a mortgage/charge over:

4. Interest rate and other costs

The annual percentage rate of charge APRC (this may be referred to as APR in your offer letter) is the total cost of the loan expressed as an annual percentage. The APRC is provided to help you to compare different offers.

The APRC applicable to your loan is 3.8%

It comprises:

- (a) Interest Rate 4.20% for 05 year(s).
After 05 year(s) our standard variable interest rate will apply (currently 3.5%).
- (b) Costs to be paid on a one-off basis
 - Property valuation fee payable to the valuer on application €150.00.
 - Subsequent property valuations (if applicable) payable to the valuer before drawdown can take place €65.00.
- (c) Costs to be paid regularly
 - None

This APRC is calculated using assumptions regarding the interest rate.

Assumptions used to calculate the APRC:

- Both we and you will fulfil our obligations under the terms of the loan offer letter (by the dates specified)
- The loan offer letter will not end early
- The loan is drawn down on the date the offer letter is issued
- The first repayment date is 10 days after the offer letter is issued
- All costs are assumed to be paid on the date of drawdown
- Interest rate(s) as outlined above will not change over the term of the loan
- The interest rate(s) used above are for illustration purposes only and may not be available to you

If your loan converts to a variable interest rate loan after the fixed period, the actual APRC could be different from the APRC if the interest rate on your mortgage loan changes. For example, if the interest rate rose to 7.70%, the APRC could increase to 6.6%

In certain circumstances you may be required to pay the following costs in connection with your loan. We have indicated where this is the case in the loan offer letter. The following costs are **not known** to us and are **therefore not included** in the APRC.

- Legal fees payable to your solicitor. These can vary, your solicitor will advise you of the fees payable.
- Fee to register the mortgage. Your solicitor will advise you of this cost.
- Government Stamp Duty. Your solicitor will advise you of this cost.
- Life Assurance. Your life assurance provider will advise you of the premium amounts.
- Property Insurance premiums. Your property insurance provider will advise you of the premium amounts.

Please make sure that you are aware of all other taxes and costs associated with your loan.

5. Frequency and number of payments

Repayment frequency: Monthly

Number of payments: 360 instalments

6. Amount of each instalment

Amount of each repayment instalment:
€638.17 for 60 months

€592.79 for 300 months

The above repayment details assume the interest rate will not change; they are correct as of the date of this document and are subject to change.

Your income may change. Please consider whether you will still be able to afford your monthly repayment instalments if your income falls.

The amount of your instalments will not increase or decrease while you are on a fixed interest rate. When the fixed interest rate period ends, the interest rate on your loan will default to the standard variable interest rate then offered by us unless you choose an alternative interest rate, if on offer by us at that time. Our standard variable interest rate is a variable interest rate. If the interest rate on your loan defaults or converts to a variable interest rate then on offer by us, your interest rate and the amount of your instalments could increase or decrease during the term of your loan and your interest rate could be higher than the fixed interest rate that applied during any fixed interest rate period. For example, if the interest rate rose to 7.70% your repayments could increase to €890.51.

7. Illustrative repayment table

The attached illustrative repayment (amortisation) table shows the amount to be paid every month for the first year and every year for the remaining term of your loan. This table is illustrative only. In the event of an interest change, the repayment instalment amount will alter.

The instalments (column 5) are the sum of interest to be paid (column 7) and capital paid (column 6). Outstanding capital (column 3) is the amount of the loan that remains to be reimbursed after each instalment.

8. Additional obligations

In order to benefit from the lending conditions described in this document you must comply with the obligations detailed in your offer letter; please read these carefully and, if you have any questions, please contact us.

Once you have read the obligations, you should note the following:

- The lending conditions described in this document (including the interest rate) may change if these obligations are not complied with.
- You can arrange any required policy(ies) through any insurer of your choice.
- Please note the possible consequences of terminating at a later stage any of the policy(ies) relating to the loan:
 - If we become aware that buildings insurance cover in respect of the property has lapsed, we may (but are not obliged to do so) arrange for fire, flood and storm insurance cover to be put in place. If the premiums for any such insurance on the property are paid by us (notwithstanding that we have no obligation to pay such premiums), you must immediately, when demanded, refund the amount involved to us, in one lump sum or, if it has been agreed between you and us to spread the premiums over a period, then over such a period which has been agreed. If the premiums are not paid when due, the unpaid premiums will, until paid, be subject to interest at the highest rate of interest from time to time applicable to the loan.
 - In the event of you cancelling or terminating payments to the life assurance policy associated to this loan, you will remain liable for any outstanding monies owing on the debt. This means that upon death and the policy has lapsed, your dependants may not be in a position to afford the loan repayments.

9. Early repayment

You have the possibility to repay this loan early, either fully or partially.

Whilst on a variable interest rate, you can make extra mortgage repayments or clear your mortgage loan earlier than agreed without having to pay penalties.

However, you may incur an early breakage charge if you make extra mortgage repayments or clear your mortgage loan whilst on a fixed interest rate. The early breakage charge will be determined on the

basis of the formula set out below.

Early breakage charge:

The formula to calculate the early breakage charge is: amount (A) x remaining term in days divided by 365 (U) x difference in cost of funds (D %)

Definition of terms used in the formula:

- (A) amount - The amount being repaid early or the amount being converted to a variable rate or another fixed rate term.
- original cost of funds - The cost of funds for Haven Mortgages Limited for the fixed rate period at the time the fixed rate period commenced.
- costs of funds for the fixed rate period remaining. The cost of funds used will be as of 5pm the day previous to the request to calculate the early breakage charge.
- (U) remaining term in days - Remaining numbers of days left before the fixed rate is due to expire.
- (D) difference in cost of funds: The difference between the original cost of funds and the cost of funds for the fixed rate period.

Worked example:

- Assume a 5 year fixed rate loan. Full repayment of : €100,000 after 3 years (A); remaining term 2 (U); difference in cost of funds 2% (D). The early breakage charge would be as follows: (A) 100,000 * (U) 2 * (D) 2% = €4,000.

Should you decide to repay this loan early, please contact us to ascertain the exact level of the early breakage charge at that moment.

10. Flexible features

You have the possibility to transfer this loan to another lender provided the loan and any amounts due to us are repaid in full. This possibility is subject to you meeting their lending criteria and conditions at that time.

Without a new offer letter, you do not have the possibility to transfer this loan to another property.

Additional features:

Term extension - In certain circumstances you can increase the term of your loan once affordability criteria has been met.

Interest Only - In certain circumstances you can apply for interest only repayments for a specified duration during the term of your loan.

These flexible repayment options are subject to our approval. If you would like to avail of any of them, please contact us so that we can confirm if they will be possible.

11. Other rights of the borrower

You have 30 days after 22/06/23 to reflect before committing yourself to taking out this loan.

12. Complaints

If you have a complaint please contact the Haven Customer Service on 0818 565 500. If you would like further information about how to complain, please see our complaints procedures on our website, www.havenmortgages.ie/complaints-policy.

We aim to resolve and respond to your complaint as quickly as possible. Where a complaint requires a

more detailed investigation it may take us a little longer to resolve your complaint. In these cases, we will write to you within 5 business days to let you know that we have received your complaint and that it is being investigated. All issues you raise will be fully investigated and we will be in touch with a solution or an explanation within 20 business days. However, if we need more time to investigate your complaint, we will let you know and keep you up to date on our progress.

If we do not resolve the complaint to your satisfaction internally, you can also contact: The Financial Services and Pensions Ombudsman by:

Post: **Financial Services and Pensions Ombudsman**

3rd Floor, Lincoln House

Lincoln Place

Dublin 2.

Tel: 01 567 7000

Fax: 01 662 0890

Email: info@fspo.ie

If you reside in an EU member state other than Ireland you can contact FIN-NET for details of the equivalent body in your own country, their website is ec.europa.eu/internal_market/fin-net/.

13. Non-compliance with the commitments linked to the loan: consequences for the borrower

If you miss any of the monthly repayments, we may exercise any rights that we may have either under the terms of the offer letter, any security, any other agreement or in law.

The following are examples of what could happen if you do not keep up with repayments:

- (a) We may report the missed or late repayment to the relevant credit rating agencies. This may affect your credit rating and make it more difficult for you to get credit in the future.
- (b) As a last resort, your property may be repossessed.

All of your obligations in connection with the loan are detailed in the loan pack.

Should you encounter difficulties in making your monthly payments, please contact us straight away to explore possible solutions.

Arrears Support Unit,

Telephone Number: 0818 280 280,

Email asu@havenmortgages.ie

14. Additional information

The offer letter, and any non-contractual obligations arising out of or in connection with it, are governed by and interpreted in accordance with the laws of Ireland.

Any dispute or claim arising out of or in connection with the offer letter (including any dispute or claim relating to its existence, validity or termination) or any non-contractual obligations arising out of or in connection with it will be dealt with by the courts of Ireland. However, we may, at our discretion, choose to take proceedings before any other appropriate court in another jurisdiction.

The offer letter is in English and we will only write and communicate with you in English.

The draft offer letter is included in the loan pack. If, after consulting with your solicitor, where applicable, you are happy to proceed, this should be signed in accordance with its' terms.'

15. Supervisor

Haven Mortgages Limited
10 Molesworth Street
Dublin 2
D02 R126
Ireland

telephone

post loan offer
cheque issue
0818 150 150

facsimile

01 850 6999

website

www.havenmortgages.ie



We are supervised by the Central Bank of Ireland, their website is www.centralbank.ie

Haven Mortgages Limited
10 Molesworth Street
Dublin 2
D02 R126
Ireland

telephone
post loan offer
cheque issue
0818 150 150

facsimile
01 850 6999

website
www.havenmortgages.ie



Amortisation Table

Account Number = 61505449

Year No.	Month No.	Balance Outstanding €	Rate %	Total Repayment €	Capital Portion €	Interest Portion €
1	1	130,318.58	4.20	638.17	181.42	456.75
1	2	130,136.53	4.20	638.17	182.05	456.12
1	3	129,953.84	4.20	638.17	182.69	455.48
1	4	129,770.51	4.20	638.17	183.33	454.84
1	5	129,586.54	4.20	638.17	183.97	454.20
1	6	129,401.92	4.20	638.17	184.62	453.55
1	7	129,216.66	4.20	638.17	185.26	452.91
1	8	129,030.75	4.20	638.17	185.91	452.26
1	9	128,844.19	4.20	638.17	186.56	451.61
1	10	128,656.97	4.20	638.17	187.22	450.95
1	11	128,469.10	4.20	638.17	187.87	450.30
1	12	128,280.57	4.20	638.17	188.53	449.64
2	12	125,966.11	4.20	7,658.04	2,314.46	5,343.58
3	12	123,552.53	4.20	7,658.04	2,413.58	5,244.46
4	12	121,035.61	4.20	7,658.04	2,516.92	5,141.12
5	12	118,410.91	4.20	7,658.04	2,624.70	5,033.34
6	12	115,393.71	3.50	7,113.48	3,017.20	4,096.28
7	12	112,269.22	3.50	7,113.48	3,124.49	3,988.99
8	12	109,033.57	3.50	7,113.48	3,235.65	3,877.83
9	12	105,682.84	3.50	7,113.48	3,350.73	3,762.75
10	12	102,212.94	3.50	7,113.48	3,469.90	3,643.58
11	12	98,619.64	3.50	7,113.48	3,593.30	3,520.18
12	12	94,898.53	3.50	7,113.48	3,721.11	3,392.37
13	12	91,045.07	3.50	7,113.48	3,853.46	3,260.02
14	12	87,054.51	3.50	7,113.53	3,990.56	3,122.97
15	12	82,922.02	3.50	7,113.54	4,132.49	2,981.05
16	12	78,642.52	3.50	7,113.56	4,279.50	2,834.06
17	12	74,210.83	3.50	7,113.52	4,431.69	2,681.83
18	12	69,621.52	3.50	7,113.55	4,589.31	2,524.24
19	12	64,868.96	3.50	7,113.57	4,752.56	2,361.01
20	12	59,947.39	3.50	7,113.52	4,921.57	2,191.95
21	12	54,850.77	3.50	7,113.55	5,096.62	2,016.93
22	12	49,572.87	3.50	7,113.54	5,277.90	1,835.64
23	12	44,107.26	3.50	7,113.54	5,465.61	1,647.93
24	12	38,447.26	3.50	7,113.54	5,660.01	1,453.53
25	12	32,585.94	3.50	7,113.55	5,861.32	1,252.23
26	12	26,516.15	3.50	7,113.53	6,069.79	1,043.74
27	12	20,230.48	3.50	7,113.56	6,285.67	827.89
28	12	13,721.25	3.50	7,113.55	6,509.23	604.32
29	12	6,980.49	3.50	7,113.55	6,740.76	372.79
30	12	0.00	3.50	7,113.54	6,980.49	133.05

The number of payments and the amount of each payment may vary. See Haven Homeloan Conditions.

This table is illustrative only.

WARNING - YOUR HOME IS AT RISK IF YOU DO NOT KEEP UP PAYMENTS ON A MORTGAGE OR ANY OTHER LOAN SECURED ON IT.

WARNING - THE PAYMENT RATES ON THIS HOUSING LOAN MAY BE ADJUSTED BY THE LENDER FROM TIME TO TIME.

Haven Mortgages Limited
10 Molesworth Street
Dublin 2
D02 R126
Ireland

telephone	facsimile
post loan offer cheque issue 0818 150 150	01 850 6999

website
www.havenmortgages.ie



Reference Number : 61505449 Date : 22/06/23
--

Mr

Property:

Principal Details Of The Loan

IMPORTANT INFORMATION AS AT 22/06/23	
1. Amount of credit advanced	€130,500.00
2. Period of Agreement	30 years
3. Number of Repayment Instalments (may vary - see Haven Homeloan Conditions)	360
4. Amount of Each Instalment *	€638.17
5. Total Amount Repayable *	€216,342.20
6. Cost of this credit (Point 5 minus 1)	€85,842.20
7. APR **	3.8%
8. Amount of endowment premium * (if applicable)	Not Applicable
9. Amount of mortgage protection premium * (if applicable)	Not Applicable
10. Effect on amount of instalment of 1% increase in first year in interest rate	€78.42p.m.

* as calculated at the time of making this agreement. The total amount repayable (at point 5 above) is inclusive of capital and interest and the fees/costs to be paid on a once off basis set out in section 4 of the ESIS included in the loan pack	
** annual percentage rate of charge	
*** this is the amount by which the instalment repayment will change in the event of a 1% increase in the interest rate on which the above calculations are based.	
WARNING - YOUR HOME IS AT RISK IF YOU DO NOT KEEP UP PAYMENTS ON A MORTGAGE OR ANY OTHER LOAN SECURED ON IT.	
THE PAYMENT RATES ON THIS HOUSING LOAN MAY BE ADJUSTED BY HAVEN MORTGAGES LIMITED FROM TIME TO TIME. <i>(Does not apply while the loan is at a fixed rate)</i>	
IF YOU CANCEL OR MAKE A CLAIM FOR REIMBURSEMENT OF A DIRECT DEBIT REPAYING YOUR MORTGAGE ACCOUNT, AND FAIL TO MAKE ALTERNATIVE ARRANGEMENTS FOR PAYMENT, YOUR ACCOUNT MAY GO INTO ARREARS.	
NOTICE: Under the Credit Reporting Act 2013 lenders are required to provide personal and credit information for credit applications and credit agreements of €500 and above to the Central Credit Register. This information will be held on the Central Credit Register and may be used by other lenders when making decisions on your credit applications and credit agreements.	
The Central Credit Register is maintained and operated by the Central Bank of Ireland. For information on your rights and duties under the Credit Reporting Act 2013 please refer to the factsheet prepared by the Central Bank of Ireland. This factsheet is available on www.centralcreditregister.ie . Copies can also be obtained on www.havenmortgages.ie .	

See attached offer letter for details of the loan conditions

Haven Mortgages Limited
10 Molesworth Street
Dublin 2
D02 R126
Ireland

telephone
post loan offer
cheque issue
0818 150 150

facsimile
01 850 6999

website
www.havenmortgages.ie



Property to be Mortgaged

Mr

Date : 22/06/23
Ref: 61505449

Loan Offer

Dear Mr ,

We are pleased to inform you that Haven Mortgages Limited has approved a Repayment Home Loan of €130,500.00 towards the purchase of the above property, to be mortgaged, at a cost of €145,000.00 subject to the following terms and the attached Haven Homeloan Conditions. This Homeloan must be secured by a charge or mortgage over the Property to be Mortgaged.

You have a statutory right to reflect on this offer for 30 days from 22/06/23.

Note: An increase in interest rates of 2% would translate into an additional €161.10 per month.

Type of loan:	
Total Amount of loan:	€130,500.00
Monthly Repayment: (Fixed Yrs 1-5)	€638.17 (See Important Note)
Interest Rate (Fixed Yrs 1-5):	4.20% (See Important Note)
After 5 years:	Standard Variable (currently 03.50 %)
Repayment Period (Years):	30 Approx.

Important Note On Fixed Rate:

As the fixed interest rates we offer change from time to time, Haven Mortgages Limited cannot guarantee that the interest rate specified above will be the same on the date you drawdown your Loan. The interest rate that will apply to your Loan for the agreed fixed period will be the appropriate fixed interest rate on offer by Haven to you on the date you drawdown. If we no longer offer fixed interest rates on the date you drawdown, an appropriate variable interest rate, offered by Haven on that date will apply to your Loan subject to a new Offer Letter being issued by Haven and accepted by you.

In line with the terms of the fixed rate, an early breakage charge is payable in the following cases where the fixed rate period has not expired:

1. If a capital payment or full repayment is made to the loan (including payments received from insurance claims).
2. If the loan is converted to a variable rate or another fixed rate.

The early breakage charge is calculated as follows: amount repaid early/being converted to another rate multiplied by (original cost of funds minus cost of funds for fixed rate period remaining) multiplied by remaining term in days divided by 365.

If we assume the change in cost of funds is a decrease of 1% and the above loan balance (or fixed portion) was converted to another rate six months after drawdown; an example of an early breakage charge on your account would be as follows:

$$\frac{\text{Balance outstanding after six months} * 1\% * \text{number of days remaining on fixed rate}}{365}$$

$$\frac{€129401.92 * 1\% * 1645 \text{ days}}{365}$$

In this example the early breakage charge would be €5831.95

Please note the above calculation is for example purposes only and does not reflect how your

Haven Mortgages Limited
10 Molesworth Street
Dublin 2
D02 R126
Ireland

telephone
post loan offer
cheque issue
0818 150 150

facsimile
01 850 6999

website
www.havenmortgages.ie



account will operate should you wish to exit the fixed rate early or make a part or full redemption.

Important Note on Interim Interest

In the calendar month in which you drawdown your loan (or any part of it), the interest that will accrue from the date of drawdown to the last day of that calendar month ("Interim Interest") is due and payable during the calendar month in which your loan (or any part of it) is drawn down. There is more information about this Interim Interest in the "Interest on the Loan" section of the Haven Home Loan Conditions attaching to your offer letter.

With your assistance, we look forward to completing the formalities of this loan as quickly as possible. **There are a few special conditions - set out below - that must be met before the loan can be drawn down. If these conditions are not satisfied, your loan will not be made available for draw down.** To avoid delays, please read the conditions very carefully, discuss with your solicitor and ensure everything required is done in good time.

Drawdown of your loan will be handled by our **Broker Support Team**. Your Mortgage Intermediary will contact you shortly to discuss the next steps.

Special Conditions

The loan, or any part of it, may be drawn down subject to the following conditions:

- Subject to this Offer Letter, dated 22/06/2023 11:40, being signed by the borrower(s) in the Acceptance Form and the full signed Offer Letter being returned to Haven Mortgages Limited.
- Subject to Insurance on the property proving satisfactory to Haven and Haven's interest being noted on the policy.
- Direct Debit Mandate being submitted to Haven prior to drawdown.
- Subject to Fixed Rate Application Form being submitted to the Lender prior to drawdown.
- Satisfactory identification for Mr _____ in compliance with Money Laundering Regulations being presented to Haven prior to drawdown.
- Satisfactory life cover and completed original assignment of the policy form being submitted and accepted by Haven prior to drawdown.
- We may require a revaluation of the property prior to the loan being made available for drawdown. In this circumstance, you will be required to pay for this valuation report.
- Satisfactory proof of address to match the system for Mr _____ in compliance with Money Laundering Regulations being presented to Haven prior to drawdown.

For your information we enclose a copy of the Valuation Report which has been carried out by our Valuer on the above property. Please note the conditions under which this report has been prepared. (See Haven Homeloan Conditions).

If the valuation of the property is undertaken more than four months before the requested date of drawdown of the loan or of the final stage payment, we will require a revaluation of the property, in Haven's standard form, before drawdown. The cost of the revaluation must be paid by you and will cost you €65.00.

We have sent a copy of this loan offer and valuation report to your solicitor Bruen Glynn & Co, Dublin Road, Tuam, Co. Galway., DX 116002 Tuam. Please contact your solicitor who will handle all of the legal matters and request drawdown of your loan.

Finally, I would like to take this opportunity of thanking you for choosing Haven Mortgages Limited for your loan.

Yours sincerely,

Haven Mortgages Limited
10 Molesworth Street
Dublin 2
D02 R126
Ireland

telephone
post loan offer
cheque issue
0818 150 150

facsimile
01 850 6999

website
www.havenmortgages.ie



Kieran Tansey
Managing Director

Consumer Credit Act 1995

Warning

YOUR HOME IS AT RISK IF YOU DO NOT KEEP UP PAYMENTS ON A MORTGAGE OR ANY OTHER LOAN SECURED ON IT.

THE PAYMENT RATES ON THIS HOUSING LOAN MAY BE ADJUSTED BY THE LENDER FROM TIME TO TIME. (Variable Rate Mortgages Only)

Consumer Protection Code 2012

Warning: If you do not meet the repayments on your credit agreement your account will go into arrears. This may affect your credit rating, which may limit your ability to access credit in the future.

If you do not pay the full amount of each scheduled repayment when due, this is a breach of the terms of the Mortgage Loan and may result in a negative report to a relevant licensed credit reference agency, damage to your credit rating, termination and demand of the Mortgage Loan and other facilities, enforcement of the mortgage by sale of the property and any other security held by the Lender for the Mortgage Loan.

Haven Home Loan Conditions

1. Borrower: In these Conditions “you”, “your”, the “Borrower” means the person or persons to whom the Offer Letter is addressed. Where more than one person is the Borrower, obligations are joint and several. Other terms used in these Conditions are defined in condition 18.

2. Acceptance of terms and conditions: By taking the Loan from Haven, the Borrower is deemed to have accepted all the terms and conditions set out in the application form, Offer Letter, these Conditions and the Housing Loan Mortgage Conditions. These conditions form part of the Offer Letter.

3. Interest on the Loan:

3.1 If the interest rate specified in the Offer Letter is a variable interest rate (which means that it may go up or down), please note that:

- Haven does not warrant or guarantee that the variable interest rate offered will be the same on the date you drawdown your Loan; and
- the interest rate that will apply to your Loan on the date you drawdown will be the appropriate variable interest rate offered by Haven prevailing on that date.

If the interest rate specified in the Offer Letter is a fixed interest rate, please note that:

- the fixed interest rates Haven offer will change from time to time and Haven does not warrant or guarantee that the fixed interest rate offered will be the same on the date you drawdown your Loan;
- the interest rate that will apply to your Loan for the agreed fixed period will be the applicable fixed interest rate prevailing on the date you drawdown; and
- if Haven no longer offer fixed interest rates on the date you drawdown, an appropriate variable interest rate, offered by Haven on that date will apply to your Loan subject to a new Offer Letter being issued by Haven and accepted by you.

3.2 The interest rate on the Loan may be increased or reduced by Haven from time to time, however no change in the interest rate will be applied to the Loan by Haven during any period when the interest rate is a fixed rate.

3.3 Notice of a change in the interest rate on the Loan will be given by way of a notice in writing sent to the Borrower. Haven may also place a notice in at least one national daily newspaper. The change in the interest rate on the Loan will take effect on the day specified in the notice.

3.4 At any time, Haven may offer a selection of interest rates and interest rate types, both fixed and variable, for loans relating to residential properties. The interest rates from time to time on offer by Haven to borrowers may depend on the Property use or the type of loan. Haven may from time to time introduce new interest rates and/or withdraw or alter interest rates that are on offer by Haven. Further conditions relating to Loan to Value interest rates and fixed interest rates are described in condition 9.

3.5 Where the interest rate is based in part on the fact that the Property is for the use and occupation of the Borrower and the Borrower’s family, and subsequently Haven consents to the letting of some or all of the Property, a condition of this consent may be that the interest rate on the Loan be increased and/or that the basis on which the interest rate on the Loan is calculated is changed.

3.6 From the date the Loan (or any part of it) is drawn down, interest will begin to accrue and will accrue on a daily basis over the term of your Loan.

3.7 In the calendar month in which you drawdown your Loan (or any part of it), the interest that will accrue from the date of drawdown to the last day of that calendar month (“Interim Interest”) is due and payable during the calendar month in which your Loan (or any part of it) is drawn down. You can pay this Interim Interest at any time during that calendar month and if you wish to do so, please contact Haven to discuss how this can be paid.

If, at the time of drawdown, the payments on your Loan are interest only payments and the Interim Interest is not paid, it will be added to your first or next Agreed Payment.

In all other circumstances, if the Interim Interest is not paid, it will be added to the Secured Liabilities and the Agreed Payments will be recalculated to ensure the Loan is repaid within the agreed term, this will result in you paying more interest over the term of your Loan. The revised amount of your Agreed Payments will be as specified in a letter that Haven will issue to you after drawdown.

3.8 For the purposes of calculating interest, percentages will not be taken beyond seven decimal places.

3.9 Haven will calculate the Interim Interest on the basis that there are 365 days in a year (366 days in a leap year). This means that it is calculated on the amount drawn down by applying the interest rate divided by 365.

3.10 Every month, except for the calendar month in which you drawdown your Loan (or any part of it), Haven will calculate interest on the basis of a 30/360 day count. This means that Haven will assume there are 30 days in a month and 360 days in a year.

Haven will calculate interest on the balance of your Loan Account outstanding on the last day of the preceding month. However, if any partial redemptions are made into your Loan Account or any additional amounts are drawn down from your Loan Account during any calendar month, the balance of your Loan Account will be adjusted at the actual time at which Haven receives or gives value for these type of payments and Haven will then calculate interest on this adjusted balance. This means that interest is, therefore, not necessarily always calculated on the balance of your Loan Account outstanding on the last day of the preceding month.

3.11 Interest will debit to your Loan Account daily and up-to-date on closure of your Loan.

3.12 Benchmark Regulations

This clause applies to the Offer Letter if it references a Benchmark that falls within the scope of the Benchmarks Regulation.

- a) Haven has a written plan in place setting out the steps that Haven will take in the event that a Benchmark ceases to be provided or if Haven considers that a Benchmark has materially changed.
- b) The plan states that if Haven uses a Benchmark in the Offer Letter and that Benchmark materially changes or ceases to be provided Haven will substitute an alternative Benchmark if this is both feasible and appropriate. Otherwise, Haven will look to find a solution that is transparent and that fairly balances the interests of Haven and the Borrower. Haven may vary its written plan from time to time without notifying the Borrower.
- c) If the Offer Letter references a Benchmark Haven will inform the Borrower (a) if that Benchmark materially changes or ceases to be provided either on a permanent or a temporary basis, (b) what Haven is doing to address this and (c) the effect that this will have on the Offer Letter and / or the Loan, including any impact or effect on the interest rate applicable to the Loan.
- d) Notwithstanding any other provision(s) dealing with notice to, or communication with, the Borrower in the Offer Letter and, unless Haven is required by law or regulation to tell the Borrower about any change to the Offer Letter and / or the Loan in a particular way, Haven may communicate the information in (c) above to the Borrower by any means available to Haven at the time, such as in person, using Haven online banking services, by post, hand delivery, any electronic or telecommunication means or by any other means required or permitted by law.
- e) Any such changes that Haven makes to the Offer Letter and / or the Loan will apply from the date Haven communicates them to the Borrower or from such later date as may be set out in that communication. For the avoidance of doubt, Haven will not be obliged to reissue the Offer Letter to reflect any changes made to it and / or the Loan as a result of the fact that a Benchmark has materially changed or ceased to be provided.
- f) This condition does not mean that the Offer Letter contains a reference to a Benchmark.

4. Repayment of the Loan:

4.1 The Borrower is required to make the Agreed Payments to Haven as specified in the Offer Letter. The Agreed Payment for each month will be due and payable on the first calendar day of the month (the "Repayment Due Date").

4.2 The first monthly Agreed Payment will be collected by way of Single Euro Payment Area (SEPA) Direct Debit payment from the account on the 10th day of the following month at the earliest, or the 8th working day* of the month, whichever is later. This will be the applicable process for the month you drawdown your Loan and any subsequent month in which you change the designated bank account. All other Agreed Payments will be collected on the 7th day of each following month.

*Working days do not include an Irish Bank Holiday or a day on which the TARGET interbank payment system is closed.

4.3 The amount of the monthly Agreed Payments will be calculated by Haven when the Loan is made available for drawdown and will be the amount which would repay the Loan, together with all the

interest due and payable, over the repayment period specified in the Offer Letter, using the following assumptions:

- a) that the interest rate remains at the rate initially applied to the Loan,
- b) that all payments on the Loan are made when due, and
- c) that the Interim Interest (under the provisions of condition 3.7 above) is a separate amount due and payable during the calendar month in which you drawdown your Loan (or any part of it).

4.4 Haven reserves the right to change the date(s) specified at condition 4.2 above to accept Agreed Payments outside of those dates and/or to require you to make payment strictly in accordance with condition 4.1 above.

4.5 If you do not designate an account as the account from which your monthly Agreed Payments will be collected, you should make your own arrangements for paying the Agreed Payments as they become due and payable.

4.6 If you fail to make an Agreed Payment during the month in which it is due and payable, the Loan Account will be in arrears and Haven will regard the Loan Account as being in arrears from the Repayment Due Date, i.e., the first calendar day of the month you failed to make the Agreed Payment.

4.7 Haven may vary the Agreed Payments from time to time, so as to take account of:

- a) any variation in the interest rate applying to the Loan, including a variation arising out of a conversion from a fixed interest rate to a variable interest rate or vice versa (subject to condition 9 where applicable), or
- b) a partial redemption (subject to condition 9 where applicable), additional amounts drawn down by the Borrower or additional amounts becoming due and payable by the Borrower to Haven which are secured by the Mortgage, or
- c) any variation in the repayment period of the Loan which has been agreed between the Borrower and Haven, at its absolute discretion, or
- d) a suspension of payments by the Borrower, or
- e) the capitalisation of any money due and payable by the Borrower to Haven, the payment of which has fallen into arrears and remains unpaid, or
- f) any variation required to ensure that the Secured Liabilities are repaid in full within the original agreed repayment period, or
- g) any error made by Haven in previously setting the amount of the Agreed Payments, or
- h) any other variation of the terms on which the Loan is advanced which has been agreed between the Borrower and Haven.

4.8 If the Property is sold and the net proceeds received by Haven are insufficient to repay the Secured Liabilities in full as at the date of payment, the shortfall remains outstanding and immediately due and payable to Haven and the Borrower is obliged immediately to pay Haven the amount of the shortfall, together with interest up to the date the amount outstanding is fully repaid.

4.9 If a Loan is on interest only terms and the Borrower wishes to make a lump sum repayment of capital, subject to condition 9 where applicable, this will have the effect of reducing the capital balance and therefore reducing the amount of the monthly payment of interest. However, the term (number of years remaining) of the Loan will not be reduced. Upon expiry of the interest only period, the Borrower may request a reduction in the term of the Loan which, if granted by Haven at its absolute discretion, will have an impact on the amount of the Agreed Payments.

4.10 If the Loan is in respect of a self-build property or subject to a specified retention amount or subject to drawdown in multiple stages, the Loan is available for drawdown in up to 6 stage payments for a period of 36 months only from the date of first drawdown. However, Haven reserves the right to make the balance of any approved funds not drawn down within that period available.

5. Fees and Charges:

5.1 All professional fees of the Borrower's solicitor, (and, where applicable, his/her spouse's solicitor where the spouse is being independently advised), including VAT, and outlays and stamp duties and registration fees payable in connection with the acquisition (if any) of the Property and the perfection of the Mortgage in accordance with the solicitor's undertaking are the responsibility of the Borrower.

5.2 If the Borrower has complied with all the Borrower's obligations under the Mortgage and has made all payments when due, there will be no additional costs or charges on the Loan, other than:

- a) charges, of which Haven has advised the Borrower before they are incurred, which are made by Haven for specific services requested by the Borrower, and

- b) costs incurred in releasing security, which may be charged to the Borrower

5.3 If Haven incurs any costs because a direct debit payment or other payment instruction by the Borrower is not made (or honoured) when due, those costs, plus an amount which reasonably covers the additional administrative expenses incurred by Haven in processing the unpaid item, will be payable by the Borrower. Haven may use a standard scale of costs (approximating the costs and expenses involved in processing unpaid items), and may amend this scale from time to time. Haven will send details of these costs to the Borrower if they arise.

5.4 If the Loan goes into arrears or any of the Secured Liabilities are not repaid when due Haven may incur costs and expenses in collecting these arrears and/or realising its security. All such costs and expenses will be payable by the Borrower. These costs and expenses will include:

- a) outlay by Haven on legal or other professional fees, and
- b) administrative expenses incurred internally by Haven. Estimates of such costs and expenses will, if possible, be sent to the Borrower before commencement of any action by Haven which would give rise to them

5.5 Costs and expenses incurred by Haven in collecting arrears and/or realising its security will be payable by the Borrower even if:

- a) it is not possible to estimate costs and expenses in advance, or
- b) the estimate proves to have been incorrect, or
- c) it is not practicable to communicate the estimate to the Borrower before the commencement of action.

5.6 Costs and expenses which are payable by the Borrower will be dealt with as follows:

- a) details will be sent to the Borrower from time to time; in the case of costs and expenses arising under condition 5.3, this will be done by including such details in the annual statement sent to the Borrower, and
- b) unless otherwise agreed by Haven, they are immediately due and payable by the Borrower, and
- c) irrespective of whether they are immediately due and payable, they will be subject to interest from the date they are incurred at the rate of interest payable from time to time on the Loan; in the case of a Loan which has more than one interest rate, the costs and expenses will be subject to interest at the highest rate from time to time applicable to that Loan.

6. Life Assurance:

Before the Loan is made available for drawdown, Haven will require a mortgage protection policy, or other life assurance, on the life (or lives, as appropriate) of the Borrower to be in force and to be assigned to Haven. This must be for the amount of and for the term of the Loan. This requirement is in compliance with the Consumer Credit Act, 1995.

7. House Insurance:

7.1 Before the Loan is made available for drawdown, Haven will need confirmation that adequate house insurance is in place. The Property must be comprehensively insured at the expense of the Borrower. The insurance must be in the joint names of the Borrower and Haven, be index linked and continue for the life of the Loan. If the Borrower modifies an existing arrangement for insurance, prior to the Loan being made available for drawdown or at any time while any of the Secured Liabilities are outstanding, Haven must be informed and all details requested by Haven must be supplied.

7.2 If Haven becomes aware that buildings insurance cover in respect of the Property has lapsed, Haven may (but is not obliged to do so) arrange for fire, flood and storm insurance cover to be put in place. If the premiums for any such insurance on the Property are paid by Haven (notwithstanding that Haven has no obligation to pay such premiums), the Borrower must immediately, when demanded, refund the amount involved to Haven, in one lump sum or, if it has been agreed between the Borrower and Haven to spread the premiums over a period, then over such period which has been agreed. If the premiums are not paid when due, the unpaid premiums will, until paid, be subject to interest at the highest rate of interest from time to time applicable to the Loan.

7.3 In the event of an insurance claim on the Property, unless Haven has agreed otherwise in writing, Haven has full power to settle and adjust the claim with the insurers.

8. Valuation(s) prior to Loan Drawdown:

8.1 A valuation of the Property must be carried out by a valuer on our approved panel of valuers prior to loan approval. You will pay for this valuation which will cost you €150. The fee for this valuation

will be refunded to you if your loan application is unsuccessful.

8.2 You will pay for a re-valuation or final valuation of the Property if the conditions of your Loan require one prior to the Loan being made available for drawdown or following the completion of the building of the Property, renovations or repairs to the Property. This valuation will cost you €65.

8.3 A copy of the valuation undertaken prior to loan approval will be sent to you. The inspection by the Haven valuer is a superficial one. Approval of the Loan, or making the Loan available for drawdown, based on a valuation does not mean that Haven has formed an opinion that the Property is soundly constructed or free from defects, or that the purchase price is reasonable, or that the reinstatement value in the valuation is accurate.

8.4 You are advised to have a detailed structural inspection of the Property carried out by a qualified professional.

9. Loan to Value (LTV) Interest Rates and Fixed Interest Rates:

9.1 From time to time, Haven may offer interest rates based on the loan to value (LTV) applicable to the Loan. Interest rates based on LTV are referred to as LTV interest rates in these Conditions and are based on the LTV of the Loan. These interest rates may be fixed or variable. LTV interest rates are not available at the drawdown of a new top up loan although Haven reserves the right to review and/or amend this eligibility criteria from time to time.

9.2 Where Haven offers LTV interest rates, they are based on LTV interest rate bands. LTV interest rate bands are ranges of LTVs set by the Haven, for example without limitation, between more than 50% and less than or equal to 80%. LTV interest rate bands may change from time to time. The LTV interest rate band available to the Borrower will depend on the LTV applicable to the Loan. Where the Borrower selects an LTV interest rate at the time of drawdown, the applicable LTV interest rate at the time of drawdown will be set out in the Offer Letter.

9.3 Information on the available LTV interest rate bands, LTV interest rates and all interest rates (fixed and variable) that are on offer by Haven from time to time can be found on the Haven website, www.havenmortgages.ie.

9.4 If the LTV of the Loan decreases, the Borrower may be able to switch to a lower LTV interest rate band. To select a new LTV interest rate during the term of the Loan, the Borrower may have to provide an up to date valuation report, if required by Haven, dated within the previous 6 months. The Borrower is responsible for the cost of the valuation report. It must be obtained from a valuer chosen by the Borrower from Haven's Residential Mortgage Valuers Panel (a list of valuers on the Haven's panel are available on the Haven website, www.havenmortgages.ie, or by request at from a Haven Mortgage Intermediary).

9.5 A valuation report will not be required in the following circumstances:

- If you choose an LTV interest rate based on an LTV interest rate band that has previously been applied to your Loan; or;
- If you choose the highest LTV interest rate band available at the time you select a new LTV interest rate.

9.6 The valuation report will be retained by Haven and a copy made available to the Borrower upon request. The LTV interest rate selected by the Borrower will not be applied until Haven is satisfied as to the estimated value of the Property.

9.7 Haven will send confirmation of the LTV interest rate applied to the Loan and of the revised Loan repayment instalments to you.

9.8 Haven may vary an LTV variable interest rate applicable to a loan at any time, up or down, according to the prevailing LTV variable interest rates on offer by Haven from time to time, subject to these Conditions.

9.9 Where a Borrower applies for a fixed interest rate, it will be for a set period of time. When the fixed interest rate period ends, the Loan will default to the standard variable interest rate then offered by Haven unless the Borrower chooses an alternative interest rate if then on offer by Haven. If Haven is offering fixed interest rates on home loans at that time, the Borrower may choose a further fixed interest rate. If Haven is offering LTV interest rates on loans at that time, the Borrower may choose an LTV interest rate appropriate to the Loan subject to the provisions of these Conditions and the

provision of an up to date valuation report in accordance with the requirements of condition 9.4 where applicable.

9.10 An early breakage charge (which may also be referred to as an early redemption charge), as described in these Conditions, may be payable by the Borrower to Haven in the following cases where the fixed interest rate period has not expired:

- if a capital payment or full repayment is made to the Loan; or
- if the Loan is converted to a variable interest rate (including but not limited to an LTV interest rate); or
- if the Loan is converted to another fixed interest rate.

9.11 The formula to calculate the early breakage charge is: amount (A) x remaining term in days divided by 365 (U) x difference in cost of funds (D%)

Definition of terms used in this condition:

(A) amount – The amount being repaid early or the amount being converted to a variable rate or another fixed rate term.

original cost of funds – The cost of funds for Haven for the fixed rate period at the time the fixed rate period commenced.

cost of funds for the fixed rate period remaining – The cost of funds used will be as of 5pm the day previous to the request to calculate the early breakage charge.

(U) remaining term in days – Remaining number of days left before the fixed rate is due to expire.

(D) difference in cost of funds – The difference between the original cost of funds and the cost of funds for the fixed rate period remaining.

Worked example:

Assume a 5 year fixed rate loan. Full repayment of €100,000 after 3 years (A); remaining term 2 (U); difference in cost of funds 2% (D). The early breakage charge would be as follows:

$(A) 100,000 * (U) 2 * (D) 2\% = €4,000.$

10. Withdrawal of Offer Letter:

10.1 The Borrower must notify Haven immediately if there is any material change in the Borrower's circumstances or if the Borrower becomes aware of any circumstances that could reasonably be expected to have an impact on the decision of Haven to make the Loan available for drawdown.

10.2 Haven reserves the right to cancel its commitment to lend under the Offer Letter and/or to restrict, amend, reduce or withdraw the Offer Letter, either before or after the Borrower has accepted the Offer Letter, if:

- there are any developments which would be likely in the opinion of Haven to have adverse effects on the financial status of the Borrower and/or the Borrower's repayment ability, or
- Haven becomes aware that the information supplied by the Borrower is materially incomplete or inaccurate or that the Borrower has made a misrepresentation to Haven, or
- Haven has reason to believe that the Property has declined in value since the Offer Letter was issued or that the value of the Property is less than the price the Borrower is paying for the Property.

11. Own Resources:

Unless otherwise agreed in writing by Haven, the Borrower is to provide (without further borrowing) the whole of the balance of the money being used to fund the purchase of the Property.

12. Restrictions on Tenancies:

The Borrower must personally occupy the Property on drawdown of the Loan, unless Haven has been informed of and has given its consent to alternative arrangements.

13. Dealings and Transfers:

13.1 Haven may transfer and deal with all or any part of the Loan and/or the Mortgage and other related security in accordance with the Housing Loan Mortgage Conditions or as otherwise permitted by law. The Borrower's attention is drawn to clause 23 of the Housing Loan Mortgage Conditions.

13.2 Haven may continue to administer the Loan on behalf of the transferee and, after the transfer, Haven may write to the Borrower on their behalf. Where Haven continues to administer or service the Loan and Mortgage on behalf of the transferee and if the requirements of the Central Bank of Ireland so demand, Haven's policies on the handling of arrears and in setting of interest rates on the Loan will continue to apply to the Loan and Haven will handle arrears as agent of the transferee.

14. Notices:

The Borrower must notify Haven in writing of any changes of address that might affect the service of notices. While Haven will make reasonable efforts to contact the Borrower or other person to whom notice should be given if it is required to give written notice, the rights of Haven will not be affected to the maximum extent permitted by law if, through no fault of Haven, notice cannot properly be given. Where the notice is to 2 or more persons, the notice will be sent to the first named person at the address last known to Haven.

15. Mistakes and Miscalculations:

15.1 Haven will not be prejudiced by any error in relation to the terms of the Loan as set out in the Offer Letter or by any error or omission in any correspondence or other information about the Mortgage or the Loan to the Borrower either before or after discharge of the Mortgage.

15.2 A receipt or discharge of the Mortgage does not discharge the Borrower from personal liability if it is later found that the amount of the Secured Liabilities was understated by mistake.

15.3 Haven will not rely on this condition to make a claim against the Borrower unless the claim is made in writing within 6 months of the receipt or discharge, but no time limit will apply if the Borrower knew or should reasonably have known of the mistake.

16. Expiry of Offer:

The Loan, or any part of it, must be drawn down within 6 months of the date of the Offer Letter (or within such other time period as specified in the Offer Letter). After this time, Haven may, at its absolute discretion, but is not obliged to, consider making any undrawn balance of the Loan available to the Borrower if requested to do so.

If Haven, at its absolute discretion, makes any undrawn balance of the Loan available to the Borrower, Haven reserves the right to require an up to date valuation of the Property or to require the Borrower to provide up to date evidence of income and verification of repayment capacity.

17. Interpretation:

If there is any conflict between these Conditions and the Offer Letter, the Offer Letter will prevail.

18. Definitions:

Agreed Payment(s) – The payment of capital and/or interest to be made by the Borrower which are described in the Offer Letter (or as otherwise described in writing by Haven to the Borrower).

Banking & Payments Federation Ireland: Organisation formerly known as the Irish Banking Federation which publishes the Housing Loan Mortgage and the Housing Loan Mortgage Conditions, (“the BPF”) which expression shall, where the context so permits, include its successors and assigns.

Benchmark – any index by which the amount payable under the Offer Letter is determined or which is otherwise referenced in the Offer Letter, and that falls within the scope of the Benchmarks Regulation.

Benchmarks Regulation – Regulation (EU) 2016/1011 of the European Parliament and of the Council of 8 June 2016 on indices used as benchmarks in financial instruments and financial contracts or to measure the performance of investment funds and amending Directive 2008/48/EC and 2014/17 and Regulation (EU) No 596/2014.

Borrower – Each person named as “Mortgagor” in the Housing Loan Mortgage relating to the Offer Letter and those persons’ successors and assigns. All parties to the Housing Loan Mortgage named as “Mortgagor” therein are jointly and severally liable to meet all Agreed Payments due under, and to comply with the other conditions of, the Mortgage.

Conditions – The terms and conditions set out in this document.

Haven – Haven Mortgages Limited trading as Haven, including, where the context so admits, its successors, transferees and assigns

Housing Loan Mortgage – Banking & Payments Federation Ireland’s Standard Housing Loan Mortgage executed by the Borrower together with the Housing Loan Mortgage General Conditions referred to therein.

Housing Loan Mortgage Conditions – Banking & Payments Federation Ireland’s Standard General Housing Loan Mortgage Conditions relating to the Housing Loan Mortgage.

Interim Interest – Has the meaning ascribed to it in condition 3.7.

Loan – The mortgage loan drawn down by the Borrower in accordance with the Offer Letter.

Loan Account – The Borrower’s Loan account with Haven.

Loan to Value (LTV) – This is the ratio of the total amount advanced under the Loan or the outstanding Loan balance, expressed as a percentage of the value of the Property. For a loan amount of €80,000 outstanding on a property valued at €100,000, the loan to value would be 80%. Your Loan balance will take into consideration any top up loans you may have.

Haven Mortgages Limited
10 Molesworth Street
Dublin 2
D02 R126
Ireland

telephone
post loan offer
cheque issue
0818 150 150

facsimile
01 850 6999

website
www.havenmortgages.ie



Mortgage – The Housing Loan Mortgage and these Conditions combined.

Offer Letter – The letter from Haven offering the Loan to the Borrower, including any amendment to that letter which has been agreed in writing by Haven and including these Conditions and the Housing Loan Mortgage Conditions.

Property – The land described as the “Mortgaged Property” (to include folio number(s) for registered land) in the Housing Loan Mortgage.

Repayment Due Date – has the meaning ascribed to it in condition 4.1.

Secured Liabilities – The Secured Liabilities due to Haven as defined in the Housing Loan Mortgage Conditions.

H050 01.19

Haven Mortgages Limited
10 Molesworth Street
Dublin 2
D02 R126
Ireland

telephone
post loan offer
cheque issue
0818 150 150

facsimile
01 850 6999

website
www.havenmortgages.ie



Acceptance Form

22/06/2023 11:41 REF : 61505449

1. I/We, the undersigned, accept the offer of a loan made to me/us by Haven Mortgages Limited on the terms and conditions set out in:
 - (i) this Offer Letter in replacement of all previous offer letters;
 - (ii) the Haven Home Loan Conditions
 - (iii) the Banking and Payments Federation Ireland Standard Housing Loan Mortgage General Conditions referred to thereincopies of which I/we have received with this Offer letter and in respect of which I/we have read and have been advised upon by my/our solicitor.
2. I consent to my spouse giving his/her consent as referred to in the Haven Mortgages Limited standard Housing Loan Mortgage.
3. I/We authorise Haven Mortgages Limited to disclose to my Spouse's Solicitor full details of the mortgage debt and security held by the Haven Mortgages Limited in relation thereto.
4. I/We irrevocably authorise and direct my/our Solicitor to give the undertakings contained in the Haven Mortgages Limited Solicitor Mortgage Pack and to do all things necessary to comply with the said undertaking.
5. I/We hereby irrevocably authorise Haven Mortgages Limited to release the loan through my/our Solicitor.
6. If the loan is a self-build loan or subject to a specified retention amount or subject to draw down in multiple stages, I/we acknowledge that the loan is available for drawdown in up to 6 stage payments for a period of 36 months only from the date of first drawdown and that Haven reserves the right to make the balance of any approved funds not drawn within that period available.
7. I/We understand the offer made is valid until 19/12/2023. After this date Haven reserve the right to withdraw this offer or seek any information necessary to extend the offer period.
8. I/We confirm that I/we have read the suitability letter which sets out the reasons why the mortgage product selected by me/us in conjunction with advice provided to me/us from our Mortgage intermediary are considered suitable, and agree that the options are appropriate for me/us and suit my/our personal circumstances.

LEGAL ADVICE SHOULD BE TAKEN BEFORE THIS DOCUMENT IS SIGNED.

: _____ Date _____

Signature of Witness _____

(Solicitor or Commissioner of Oaths/ Mortgage Intermediary)

Print Name of Witness _____

Company Name and Address of Witness _____

Date _____

Haven Mortgages Limited
10 Molesworth Street
Dublin 2
D02 R126
Ireland

telephone
post loan offer
cheque issue
0818 150 150

facsimile
01 850 6999

website
www.havenmortgages.ie



Property to be Mortgaged

Mr

Ref: 61505449

Date : 22/06/23

Suitability Statement

Important Notice - Statement of Suitability

This is an important document which sets out the reasons why the product(s) or service(s) offered or recommended is/are considered suitable, or the most suitable, for your particular needs, objectives and circumstances.

Dear Mr ,

We are pleased to provide you with your Statement of Suitability to the mortgage product that we are providing to you. Your Mortgage Intermediary will also provide you with their Statement of Suitability which is in respect to arranging the most suitable product for you and providing their services to you. Your Mortgage Intermediary has established through your application and ongoing communications that it is your objective to finance the above mentioned property

We as your lender have assessed your affordability and the repayments have been deemed to be sustainable based on the information you have provided to us through your Mortgage Intermediary and it is likely that you will be able to meet these requirements based on your circumstances and the proposed terms of the Home loan agreement.

The product is suitable because:

Loan Amount: The loan amount is indicated in your Letter of Loan offer.

Loan Type

Annuity

You have opted for an Annuity loan as you have indicated through your Mortgage Intermediary that you want to make capital (principal) and interest repayments each month in order to repay your loan in full within the selected loan term

Loan Term

You have opted through your Mortgage Intermediary to pay your loan over a term of 30 years as the monthly repayment amounts over this loan term, based on current interest rates, are the most suitable for your current circumstances including your age and current financial situation. You may opt to increase your monthly repayments at any time in order to repay your loan over a shorter term. If you opt to do so while on a fixed interest rate, an early breakage charge may be payable. Equally, subject to you meeting the relevant qualifying criteria, you may be able to reduce your monthly repayments and/or extend your loan term.

Interest Rate Type

Fixed Rate

You have opted through your Mortgage Intermediary to fix your interest rate for the first 05 years, as you require your repayments to be protected against interest rate variations for this period. When the fixed interest rate period ends, the interest rate on your loan will default to the standard variable interest rate then offered by Haven at that time unless you choose an alternative interest rate, if on offer by Haven to you at that time. Our standard variable interest rate is a variable interest rate. If the interest rate on your loan defaults or otherwise converts to a variable interest rate then offered by Haven, your interest rate and the amount of your instalments could increase or decrease during the term of your loan and your interest rate could be higher than the fixed interest rate that applied during any fixed interest rate period.

Haven Mortgages Limited
10 Molesworth Street
Dublin 2
D02 R126
Ireland

telephone
post loan offer
cheque issue
0818 150 150

facsimile
01 850 6999

website
www.havenmortgages.ie



Please sign the enclosed Acceptance Form in order to accept your loan offer, also acknowledging and accepting the terms of your suitability statement. Should you require any further information please contact your Mortgage intermediary. Finally, thank you for choosing Haven Mortgages Limited in conjunction with your Mortgage Intermediary for your Home Loan Facility.

Yours Sincerely,

The Manager
Haven Mortgages Limited



Mr

Date : 22/06/23
Ref.: 61505449 R

Dear Solicitor,

I understand that you act for the Borrower in the attached Loan Offer. In consideration of our lending to the(se) customer(s) we require you to perfect the security in accordance with Haven Mortgages Notes and Procedures using Haven's Mortgage funds Requisition Form & the Law Society of Ireland approved Solicitor's Letter of undertaking and Solicitor's Certificate of Title.

We ask you to ensure that:

1. Your firm holds **Professional Indemnity Insurance*** at all times.
2. The special conditions of the Loan Offer should be satisfied prior to drawdown.
3. If Land Registry Title, an up-to-date certified Copy Folio of the property, showing the mortgage registered as a burden on it is provided to you.
4. The Borrower obtains a **good marketable Title**, and that Haven Mortgages Limited obtains a first legal Mortgage / Charge, in accordance with the terms of the Solicitor's Letter of Undertaking.
5. The Borrower's signature on the Mortgage must be made in the presence of and witnessed by a Solicitor.

All necessary documentation, satisfactory to Haven Mortgages Limited, should be forwarded to Haven Mortgages Limited at least 5 working days in advance of the proposed drawdown date.

If you need any more information please contact our Broker Support Team at 0818 150 150.

Yours sincerely,

Kieran Tansey
Managing Director

Schedule of Documents Enclosed

1. Loan Offer letter in replacement of all previous offer letters
2. Haven Home Loan Conditions
3. Banking and Payments Federation Ireland Standard Housing Loan Mortgage General Conditions.
4. Valuer's Report.
5. Haven Mortgage Funds Requisition Form & Law Society of Ireland approved Letter of Undertaking.
6. Law Society of Ireland approved Certificate of Title.
7. Mortgage

*Please note: Evidence of appropriate Professional Indemnity cover must be provided for all Homeloans.

Haven Mortgages Limited
10 Molesworth Street
Dublin 2
D02 R126
Ireland

telephone
post loan offer
cheque issue
0818 150 150

facsimile
01 850 6999

website
www.havenmortgages.ie



Distance Marketing Information - Haven Mortgages Limited

Important Notice

This document is for information purposes and is applicable only where the contract between you, the borrower, and Haven Mortgages Limited is concluded at a distance and the European Communities (Distance Marketing of Consumer Financial Services) Regulations 2004 apply. A distance contract is a contract where there is no face to face meeting between you, the borrower and Haven Mortgages Limited, or a Haven Mortgages Limited appointed Mortgage Intermediary.

Information About Us

We are Haven Mortgages Limited. Our main business is providing housing loans to you, the borrower. Our Head Office is at 10 Molesworth Street, Dublin 2, D02 R126.

If you wish to contact Haven Mortgages Limited in connection with this loan, please write to Customer Services, Haven Mortgages Limited, 10 Molesworth Street, Dublin 2, D02 R126 - Telephone 0818 150 150. Alternatively, please contact your Mortgage Intermediary.

If you, the borrower, have been introduced to Haven Mortgages Limited by a mortgage intermediary they will have provided you with details about their business and their relationship with Haven Mortgages Limited.

Our Company registration number is 438829 and our Vat Number is 9667148J.

Information about the financial service [i.e. the loan]

We are providing you, the borrower, with a housing loan which is secured on a property(ies). Haven Mortgages Limited requires a first legal mortgage or charge on the property which is used to secure the Loan.

Details of your loan are provided in your loan offer letter which is in this pack and includes the duration of the Loan, the interest rate applicable to the Loan, the APR and any special conditions attached to the Loan.

The general conditions of the loan are set out in the Haven Homeloan Conditions document also enclosed.

The total cost of the credit is set out under the Principal Details of the Loan section of your Loan Offer Letter. We require you, the borrower, to have a property insurance policy to keep the property insured against fire and usual risks and to pay all premiums in respect of the property policy.

We may also require you to have a mortgage protection policy for the term of the loan to repay the Loan in full in the event that one of the parties on the loan dies before the loan is paid off. You are liable for all premiums in respect of the mortgage protection policy.

A valuation of the property must be carried out by a valuer on our approved panel of valuers. You will pay for this valuation which will cost you €150.00.

You will pay for a revaluation or final valuation of the property if the conditions of your loan require one prior to the loan being made available for drawdown or following the completion of the building of the property, renovations or repairs to the property. This revaluation will cost you €65.00.

We may require a structural survey (on the advice of a valuer) to be carried out by a suitably qualified architect or engineer depending on the age and condition of the property and you, the borrower must pay the fee for the structural report.

Legal fees (excluding the costs associated with Haven Mortgages Limited's legal investigation of title for the purposes of the Loan) are payable by you the borrower to your Solicitor. The amount will depend on the arrangement between the parties.

Other fees, charges and taxes not imposed by Haven Mortgages Limited - e.g. government stamp duty may be payable by you, the borrower.

Interest rates and charges relating to the Loan are set out in the Haven Homeloan Conditions as referred to above. The actual interest rate applicable to the Loan is set out in the Loan Offer Letter and may be

Haven Mortgages Limited
10 Molesworth Street
Dublin 2
D02 R126
Ireland

telephone
post loan offer
cheque issue
0818 150 150

facsimile
01 850 6999

website
www.havenmortgages.ie



subject to change in accordance with the terms of the Loan Offer Letter.

The Loan must be repaid in accordance with the Haven Homeloan Conditions on or accompanying the Loan Offer Letter.

Your Rights to Cancel or terminate the Contract

In accordance with Regulation 12 (d) of the European Communities (Distance Marketing of Consumer Financial Services) Regulations 2004 you, the borrower, do not have the option to cancel the Loan. In the case of a variable rate loan, the Loan can be redeemed in full at any time by lodging the funds to your mortgage account.

If the Loan is a fixed rate loan, in the event of early repayment (full or partial) or conversion to a variable interest rate or other fixed rate within the initial fixed rate period or any further or subsequent fixed rate period, you, the borrower will be liable to pay a minimum early breakage charge as follows:

- If a capital payment or full repayment is made to the Loan.
- If the Loan is converted to a variable rate/tracker rate.
- If the Loan is converted to another fixed rate.

Calculation Of An Early Breakage Charge

The early breakage charge is calculated as follows:

Amount multiplied by (original cost of the funds minus cost of funds for the fixed rate period remaining) multiplied by the remaining term in days divided by 365.

Definition of Terms:

Amount - The amount being repaid early or the amount being converted to a variable rate or another fixed rate term.

Original Cost of Funds - The cost of funds for Haven Mortgages Limited for the fixed rate period at the time the fixed rate period commenced.

Cost of funds for the fixed rate period remaining - The cost of funds used will be as of 5pm the day previous to the request to calculate the early breakage charge.

Remaining Term in Days - Remaining number of days left before the fixed rate is due to expire.

Governing Law and Language

The Loan will be governed by and construed in accordance with the laws of Ireland, and the courts of Ireland shall have exclusive jurisdiction to resolve any disputes in connection with the Loan. The English language will be used for the purpose of interpreting the Letter of Offer and for all communication in connection with the Letter of Offer and the Loan in general. However we may at our discretion, choose to take proceedings before any other appropriate court in another jurisdiction.

Complaints Procedures

Every attempt has been made to handle your application with great care, however if you are unhappy about any part of the process we would be delighted to hear from you. Please phone Customer Service at 0818 150 150. Alternatively, you can email us or write to us at the following address;

Customer Service, Haven Mortgages Limited, 10 Molesworth Street, Dublin 2, D02 R126. Email info@havenmortgages.ie

As a final step you may refer your complaint to the Financial Services and Pensions Ombudsman by phone, fax, email or post.

Phone: 01 567 7000

Fax: 01 662 0890

E-mail: info@fspo.ie

Post: Financial Services and Pensions Ombudsman Bureau, 3rd Floor, Lincoln House, Lincoln Place, Dublin 2.